

26SMCV03065 26SMCV03065

County: los-angeles

Division: Civil Law and Motion

Department: I

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The court will GRANT the application to extend the time to file an SMS until August 31, 2026. The current deadline is at least arguably about to pass, but plaintiff filed a FAC on August 9. Frankly the requested relief is so minor that the court was tempted just to say GRANTED and be done with it. However, the court will provide a bit of explanation.

Plaintiff opposes the motion on the basis that there is no exigency and that any emergency there might have been is a self-inflicted wound in that defendants could have filed earlier if they were so inclined. Plaintiff also contends that there is nothing new under the sun in the FAC, so that is not really a good reason to extend the time.

Here is the court's view.

The court often sees such motions filed after the 60 day time period. And they are often granted. Whether to consider an untimely SMS is a matter of discretion, not jurisdiction.

Where an SMS has merit, the court often will exercise its discretion to consider the matter, at least if the untimeliness is not over long. (For example, if it had been 6 months rather than two weeks, the court might deny the SMS out of hand.) And the court finds it commendable that defendants seek permission rather than forgiveness. So the court's general view is to allow the extra time.

The matter has also been somewhat complicated by the preliminary injunction issue. Plaintiff seeks a preliminary injunction to compel defendants to lift the ban on her

being a patron at certain businesses at the hotel. Defendants oppose that injunction. To that end, there has been some discovery

and a lot of briefing. That is a

confounding factor. An early SMS would

have frozen discovery, an issue with which the court would have to deal in the context of a preliminary injunction motion.

The court will hardly fault defendants for not going that route. Second, defendants' time was of necessity divided. In the typical case, very

little is going on for the first 60 days of the case, and defendants can

consider whether to file an SMS at their leisure. That was just not the case here. And finally, there is the FAC. The court has not studied the FAC with great

care, and it is unclear whether the FAC would re-start the clock as to some of the grounds for the SMS. Better not to

have to deal with that additional procedural issue.

On balance, the court sees no harm in granting the

application. The court also notes that

the exigency is that if this were brought on noticed motion, defendants would

have to either file the SMS timely (thereby mooted the motion) or take the

risk that the court will strike it on the procedural ground. That is enough exigency for this a timing request.

The application is GRANTED.

Defendants have until August 31, 2026, to file an SMS. Opposition and reply will be per Code. The court does not intend to hear argument.